

VENDOR AGREEMENT

This Vendor Agreement (“**Agreement**”) is made by and between **IDG Creative Designs Pvt. Ltd.** (“**Company**”), an Indian Private Limited Company having offices at A 205, Soliterian City Center , Knowledge Park III , Greater Noida, and Entity onboarded as Vendor under the Onboarding Form (“**Vendor**”). This Agreement shall become effective on the date on which the Vendor is Onboarded (the “**Agreement Effective Date**”).

This document is an electronic record in terms of Information Technology Act, 2000 and rules made there under as applicable and the amended provisions pertaining to electronic records in various statutes as amended by the Information Technology Act, 2000. This electronic record is generated by a computer system and does not require any physical or digital signatures and the same has been incorporated by reference in the Vendor Agreement (defined Above).

WHEREAS:

- A. The Company is engaged in the business of facilitating a Platform where Customers can post their Interior Design requirements to get Bids from Prospective Vendors (“**Business**”);
- B. The Vendor has represented to the Company that he has the skill and expertise required for performing the Services which is offered by the Company to its Customers (as defined below);
- C. Based on the aforementioned representation made by the Vendor, the Company is desirous of engaging the Vendor to obtain the Services for its Customers; and
- D. Pursuant to mutual discussions, the Company and the Vendor have agreed to enter into this Agreement to record their mutual understanding and rights and obligations in relation to the Vendor’s engagement with the Company.
- E. In consideration of the mutual covenants and promises contained herein and other good and valuable consideration, the receipt and sufficiency of which are hereby acknowledged, the Parties agree as follows:

NOW THEREFORE THIS AGREEMENT WITNESSETH AND IT IS HERBY AGREED
BETWEENTHE PARTIES HERETO AS UNDER:

1. Definitions

- 1.1. Definitions: In this Agreement unless the context otherwise requires, the capitalised words and expressions mentioned below shall have the following meanings assigned to them:

- 1.1.1. “**Affiliate(s)**” of a Person (as defined below) (“**Subject Person**”) shall mean (i) in the case of any Subject Person, other than a natural person, any other Person that either

directly or indirectly through one or more intermediate Persons, Controls (as defined below), is Controlled by or is under common Control with the Subject Person, (ii) in the case of any Subject Person that is a natural person, shall include a relative (as defined in the Companies Act, 2013) of such Subject Person;

- 1.1.2. **“Confidential Information”** shall mean any confidential and/or non-public proprietary information, in a written or verbal form, belonging or relating to the Company or its subsidiaries, or their vendors, customers or other third parties, including without limitation: (i) inventions, innovations, works or intellectual property rights, trade secrets and know-how including the Work Product (as defined below); (ii) information relating to the development, utility, operation, functionality, performance, cost, present or future business plan, formulae, strategies, techniques, policy, data related to employees, present or proposed vendors/customers, sales and marketing plans, compilations of client, markets or industry specific demographics and statistics, research and development, financial statements, budgets and other financial details, business and marketing plans, forecasts, licenses, price lists, quotes, bids, organizational structure and controls, operating procedures, responsibilities, policies and procedures, software programs and files, operating manuals, Customer manuals documentation etc.; (iii) proprietary or sensitive information of or about the Company and/or its business acquired by virtue of association with the Company; (iv) confidential and non-public proprietary information of third parties, including former, existing or prospective employees, Vendors, agents, customers, partners, vendors, suppliers or Affiliates; (v) the terms and conditions of this Agreement; and/or (vi) all record bearing media containing or disclosing the above information or techniques, whether identified as “confidential” expressly or not. Confidential Information shall not include: (a) information that is publicly available through no fault of the Vendor; (b) information that was acquired by the Vendor prior to his engagement with the Company from any Person not obligated to keep such information confidential and/or (c) rightfully received by the Vendor from a third party without a breach of confidentiality by such third party;
- 1.1.3. **“IP Rights”** shall mean all rights in and in relation to all intellectual property rights subsisting in the products, software, etc. manufactured, developed, being developed and/or proposed to be developed, including all patents, patent applications, moral rights, trademarks, trade names, service marks, service names, brand names, internet

domain names and sub-domains, inventions, processes, formulae, copyrights, business and product names, logos, slogans, trade secrets, industrial models, processes, designs, database rights, methodologies, computer programs (including all source codes), technical information, manufacturing, engineering and technical drawings, know-how, all pending applications for and registrations of patents, entity models, trademarks, service marks, copyrights, designs and internet domain names and sub-domains and all other intellectual property or similar proprietary rights of whatever nature (whether registered or not and including applications to register or rights to apply for registration) in each case anywhere in the world;

- 1.1.4. **“Law” or “Laws”** shall mean and include all applicable statutes, enactments, acts of legislature, any state, central or municipal authority, any central bank or regulatory authority) or the Parliament, laws, ordinances, rules, by-laws, regulations, notifications, guidelines, policies, directions, directives and orders of any applicable Governmental Authority, tribunal, board, court or a recognised stock exchange;
- 1.1.5. **“Person”** shall mean any natural person, limited or unlimited liability company, corporation, partnership (whether limited or unlimited), proprietorship, Hindu undivided family, trust, union, association, Government or any agency or political subdivision thereof or any other entity that may be treated as a person under applicable Law;
- 1.1.6. **“Platform”** refers to the Website [[Link](#)];
- 1.1.7. **“Services”** means the services to be provided by the Vendor to the Company’s Customers and includes all allied/incidental services thereto, as more specifically detailed under the Service description posted by the Customer on the Platform;

2. Terms of Engagement

- 2.1. **Term:** The term of this Agreement shall be valid from the Effective Date and shall continue to be in force unless terminated in accordance to Clause 9 of this Agreement (the **“Term”**).

2.2. Provision of Services:

- 2.2.1. The Vendor shall provide the Services as posted by the Customers on the Platform.
- 2.2.2. The Vendor shall perform and discharge all duties, obligations, responsibilities and functions in connection with his engagement hereunder in a competent, professional and timely manner, and in compliance with Laws.
- 2.2.3. The Vendor shall abide with all the instructions provided by the Company and its Customers from time to time in performing the Services under this Agreement.

- The Vendor shall maintain the property (any books, document, circulars, files, items, equipment or licenses) of the Company which might be furnished to the Vendor in connection with the Services, in a prudent manner. It is hereby agreed and acknowledged that any such property shall remain the exclusive property of the Company.

2.2.4. The Parties agree that they shall not, in the course of carrying out the obligations under this Agreement, perform any act nor do anything that would contravene the provisions of any Law for the time being in force.

2.2.5. The Vendor shall at all times keep the Company promptly, fully and truthfully informed of the discharge of his duties, obligations and/or responsibilities and also promptly provide such further information, written records and/or explanation as the Company may require at any time.

2.3. Responsibilities of the Vendor

2.3.1. The Vendor shall perform its obligations during the Term, in accordance with the terms and conditions of this Agreement.

2.3.2. The Vendor shall submit bids for projects in accordance with the requirements specified by Customers on the Platform.

2.3.3. The Vendor shall provide accurate cost as per the Market for each project bid, ensuring transparency and clarity regarding the scope of services and associated costs. The Vendor shall not include any hidden charges or fees in their proposals or quotations.

2.3.4. The Vendor shall communicate clearly and promptly with Customers regarding the services included in their cost, any modifications requested by the Customer, and any additional charges that may apply.

2.3.5. The Vendor shall pay an earnest deposit to the Platform once a Project is awarded to the vendor, which shall be held by the Platform until the satisfactory completion of the services. The amount will be refunded once the customer confirms the satisfactory completion of the Project.

2.3.6. The Vendor shall give proper project updates to the Client within the Prescribed Time.

2.3.7. The Vendor acknowledges and agrees to solely manage and utilize its own resources, including manpower, tools, and raw materials, for the execution of services procured through the Platform. The Vendor shall ensure that all services rendered adhere to the standards, timelines, and quality levels expected by the customers and in accordance

with the agreed-upon terms as stipulated in the quotation generated through the Platform.

- 2.3.8. The Vendor acknowledges that the Platform acts as an intermediary facilitating transactions between customers and the Vendor. Upon the acceptance of the quotation by the customer, the payment for the services shall be made by the customer to the Platform. The Vendor acknowledges that the Platform will release payments to the Vendor only upon the successful completion of the services and as per the agreed-upon terms and conditions between the Platform and the Vendor."
- 2.3.9. The Vendor (and/or any of its affiliate and/or group and/or associate company) shall not directly or indirectly solicit or entice away from the Company (or any of its affiliate and/or group and/or associate companies) any of the clients referred to the Vendor under this Agreement and/ or any person/personnel who, at the relevant time, is employed by the Company or its affiliates and/or group and/or associate companies, whether or not that person would commit a breach of contract by reason of leaving during the term of this Agreement and for a period of 1 (one) year after the termination or expiry of this Agreement.
- 2.3.10. Time is of the essence in performance of the Services hereunder and a significant and material term hereof. If any delay by the Vendor continues for 5 (Five) working days without any notice or reasonable explanation or reason provided by the Service Provider, then without prejudice to any other right available to the Company under this Agreement, Company shall have the right to terminate this Agreement in accordance with the provisions of this Agreement. Company reserves the right to either get the services performed through some other agency at the Vendor's risk and cost or to terminate this Agreement without any compensation/fees to the Vendor.
- 2.3.11. The Vendor for the purposes of this Agreement shall act lawfully, honestly and in good faith, strictly as per the terms and conditions of this Agreement. They shall not make any misrepresentations or false commitments either to the customers of the Company or any other third party and shall be solely responsible for any liabilities arising out thereof.
- 2.3.12. The Vendor shall not charge any money or fees or any other considerations apart from what is mentioned in the Quotation generated by the Vendor on behalf of the Company, from the Customers referred by the Company under this Agreement and shall

indemnify, hold harmless and defend Company for any claims arising thereto.

2.3.13. The Vendor shall not discuss with the Customer about the terms of engagement between the Vendor and Company including the commission details of Company for the services rendered by the Vendor.

2.3.14. The Vendor shall be proactive in providing updates about the service request both to the customer and to the Company. The Vendor should respond to any communication shared by Company or the Customer within 48 hours from the receipt of communication by Vendor.

3. Fee

- 3.1. The Services are available under subscription plans of various durations. Your subscription will be automatically renewed at the end of each subscription period unless you inform us that you do not wish to renew the subscription. At the time of automatic renewal, the subscription fee will be charged to the Payment Method last used by you. We provide you the option of changing the details if you would like the payment for the renewal to be made through a different Payment Method. If you do not wish to renew the subscription, you must inform us at 30 days prior to the renewal date. If you have not informed us that you do not wish to renew the subscription, you will be presumed to have authorized us to charge the subscription fee to the Payment Method last used by you. By using our Services, You agree to be billed on a recurring basis and to be automatically using the Payment Methods upon invoicing.
- 3.2. All amounts paid for subscription services are non-refundable. This policy applies to all subscription plans, including but not limited to monthly, quarterly, and annual subscriptions.
- 3.3. You may cancel your subscription at any time by following the cancellation process outlined in our Terms of Service. Upon cancellation, you will not be eligible for a refund of any unused portion of your subscription, regardless of the remaining time on your subscription term. Your account will be active until the end of your subscription Term.
- 3.4. We reserve the right to terminate your subscription at our discretion for any violation of our Terms of Service or for any other reason we deem necessary. In such cases, you will not be entitled to a refund for any amounts previously paid.
- 3.5. While availing any of the payment method/s available through the Platform, we will not be responsible or assume any liability, whatsoever in respect of any loss or damage arising directly or indirectly to you due to:
 - 3.5.1. Lack of authorization for any transaction(s), or

- 3.5.2. Exceeding the preset limit mutually agreed by You and between "Bank(s)", or
- 3.5.3. Any payment issues arising out of the transaction, or
- 3.5.4. Decline of transaction for any other reason(s).
- 3.6. Company will release the payment as collected from Customer to the Vendor on successful completion of the Service Request after deducting Company's commission. If the Vendor requires an Advance Amount to start working on the service request, the Vendor shall send an email communication to the Company with details of the Customer and advance amount. In no case, the advance amount shall be more than 50% of the total fee collected from the customer.
- 3.7. The Vendor shall raise an invoice to Company for his/her Service fee towards the service rendered by the Vendor to the customer. The amount mentioned in the invoice shall be the same as agreed between the Vendor and Customer at the time of raising quotation to the Customer. Any change in the amount quoted shall be intimated to the Company in advance.
- 3.8. The Vendor acknowledges that the Platform will charge a Commission of 7 to 10% of the project value. The Commission will be deduced from the amount paid by the client before it is disbursed to the Vendor.
- 3.9. Payment Cycle: The invoice shall follow a 30-day billing cycle. The payment of the Professional Fee will only be initiated upon the successful completion of the agreed-upon work or services.
- 3.10. Notwithstanding anything contained in this clause, Company shall release the payment to the Vendor only after the customer confirms that the service was availed by them and is satisfied with the service delivery without any issues or complaints regarding delivery, quality and/or timeliness.

4. Confidentiality

- 4.1. The Company and the Vendor shall not, directly or indirectly, during the time of this Agreement and thereafter, use or disclose to any Person any Confidential Information other than as required for the purpose of this Agreement and strictly on a need-to-know basis.
- 4.2. The confidentiality obligations under the Agreement shall not prevent the Vendor from disclosing the same if required by Law or under the orders of any court of competent jurisdiction or other competent legal authority, provided that the Vendor gives the Company prior reasonable written notice of such intended disclosure and an opportunity to renegotiate the same, to the extent possible.
- 4.3. The Vendor confirms that all Confidential Information shall remain the sole and absolute property of the Company. The Vendor shall, upon expiry of the Term, return all Confidential

Information and other Company property, in the possession of the Vendor or destroy the same, as may be required by the Company.

- 4.4. During the course of engagement and provision of services, the Vendor may have access to confidential customer information or data provided by the Platform. The Vendor agrees to maintain strict confidentiality and not disclose, share, or utilize this information for any purpose other than the intended provision of services facilitated by the Platform.
- 4.5. The Vendor agrees that all customer-related information obtained or accessed through the Platform, including but not limited to personal details, contact information, preferences, and any other data considered confidential, shall be kept strictly confidential. This obligation extends beyond the duration of engagement and remains in effect indefinitely.
- 4.6. The Vendor shall only utilize customer information for the sole purpose of providing services through the Platform. Under no circumstances shall this information be shared, sold, distributed, or used for personal gain, marketing, or any other purposes without explicit written consent from the Platform or the respective customers.
- 4.7. **Access to Vendor Account** Vendor Account issued to the Vendor by the Company is deemed the exclusive property of the Company and is to be used by the Vendor solely for the purpose of performing the General Services under this Agreement. Furthermore, by accepting the terms of this Agreement, the Vendor agrees and consents to the Company accessing the issued Vendor account and disclosing any information obtained therein to any third party whenever the Company finds it necessary to protect its interests in connection with: (i) preventing acts of libel through email; (ii) protecting Confidential Information and other business secrets; (iii) preventing infringement of intellectual property rights; (iv) preventing the illegal use of email; (v) the use of emails as evidence in legal proceedings; and (vi) any other reason that the Company deems necessary to protect its interests.

5. Cooperation

- 5.1. The Company, its Vendors, employees and counsel shall fully cooperate with the Vendor with respect to any matter (including litigation, investigations, or Governmental proceedings), current or in future, which relates to matters in which the Vendor is or was involved. The Vendor shall notify the Company and shall assist the Company in any manner as may be required by the Company, immediately if he becomes aware of any information that may affect the Company or materially harm its interest in any manner.

6. Non-disparagement

- 6.1. Neither Party shall not (directly or indirectly) take any action in relation to the Other Party, which could reasonably be expected to adversely affect the reputation of the Other Party.
- 6.2. Neither Party shall not make any statement, claim or representation on behalf of the Other Party, except with the express written permission of the Other Party and other than those that may have been expressly permitted in writing by the Party.
- 6.3. Further, the Neither Party shall not (directly or indirectly) make any statements (written or verbal, electronically, anonymously or otherwise) or cause or encourage others to make any statements (written or verbal, electronically, anonymously or otherwise), which would defame, discredit, disparage or in any way criticize the Other Party. The Parties acknowledge that this prohibition extends to statements (written or verbal) made to anyone (including current or potential investors, industry analysts, competitors, strategic partners, vendors, suppliers, licensors, employees, clients and third parties) or through any medium, including but not limited to social media (including social media websites, Facebook, Twitter, and LinkedIn).

7. Intellectual Property

- 7.1. The Vendor acknowledges and agrees that all intellectual property rights, including but not limited to copyrights, trademarks, patents, trade secrets, know-how, and any other proprietary rights associated with the Platform, its software, technology, algorithms, databases, designs, logos, and content (collectively referred to as 'Platform IP'), shall exclusively belong to and be owned by the Company.
- 7.2. The Company grants the Vendor a limited, non-exclusive, non-transferable license solely for the purpose of utilizing the Platform's services in accordance with the terms of this agreement. This license does not confer any rights or ownership in the Platform IP to the Vendor.
- 7.3. The Vendor agrees not to copy, reproduce, modify, reverse engineer, distribute, or create derivative works based on the Platform IP without the prior written consent of the Company. The Vendor further agrees not to infringe upon or challenge the Company's ownership of the Platform IP in any manner.
- 7.4. The Vendor hereby assigns, transfers, and conveys to the Company all rights, title, and interest, including any moral rights, in any feedback, suggestions, or improvements provided by the Vendor related to the Platform, and waives any claims to such rights.

8. Custodial Responsibility:

- 8.1. The Vendor shall be held liable for any loss, damage, or injury caused to the customer's personnel or property resulting from the Vendor's negligence, inadequate service execution, or willful

misconduct during the provision of services. The Vendor shall take full responsibility for the actions of their workforce deployed at the customer's premise.

- 8.2. The Vendor agrees to ensure that their workforce engaged in executing services on the customer's premises is trustworthy, competent, and compliant with all applicable laws and regulations. The Vendor shall undertake due diligence in the selection and supervision of their personnel to prevent any act that is prohibited by law or that may cause harm or inconvenience to the customer or their property.

9. Exclusion of Platform's Liability:

- 9.1. The Platform shall not be held liable for any complaints, claims, damages, theft, loss, injury, or misconduct reported by the customer arising from the services rendered by the Vendor. The Vendor acknowledges and agrees that any such grievances or issues pertaining to the execution of services, behavior of personnel, or damages caused at the customer's premises shall be solely the Vendor's responsibility.
- 9.2. The Vendor shall indemnify, defend, and hold the Platform harmless from and against any claims, losses, liabilities, expenses, or damages arising out of the Vendor's actions, negligence, or willful misconduct during the execution of services at the customer's premise. This indemnification shall extend to cover any legal costs or expenses incurred by the Platform in connection with such claims or disputes.

10. Termination

- 10.1. Either Party may terminate this Agreement, by providing a prior written notice of 30 (thirty) days to the other.
- 10.2. In the event of termination of this agreement for any other reason, the Vendor shall diligently complete all pending service requests accepted prior to the effective date of termination.
- 10.3. The Vendor shall honor and fulfill all service commitments, including but not limited to ongoing service agreements, work orders, or pending service requests made through the Platform, until the completion of the services or as otherwise agreed upon with the customers.
- 10.4. The Vendor agrees to expedite the completion of pending service requests within a reasonable timeframe following the termination notice, ensuring that all ongoing services are finalized in accordance with the terms and standards established for such services.
- 10.5. Upon completion of the pending service requests, the Vendor shall return any assets, materials, or equipment belonging to the Platform or the customers, and settle any outstanding obligations or dues related to the services rendered.

11. Vendor's representations and warranties

11.1. The Vendor hereby represents, warrants, and confirms that:

- a. he has the right, power and authority to execute and deliver this Agreement and is not prohibited from entering into this Agreement and performing the Services;
- b. he has the required experience, capability and expertise to ensure performance of his obligations under this Agreement.

12. Remedies

12.1. The Parties acknowledge that the non-breaching Party shall suffer immediate, material, immeasurable, continuing and irreparable damage and may not have any adequate monetary remedies if the other Party breaches the terms or conditions of this Agreement. The Parties acknowledge that the non-breaching Party shall be entitled to institute and prosecute proceedings in any court of competent jurisdiction to prevent the breaching Party from violating any contractual or legal obligation or to compel performance of the obligations hereunder. Relief of injunction and/or specific performance shall be in addition to any remedy for damages that the non-breaching Party may be entitled to.

13. Legal Relationship

13.1. Vendor is an independent contractor and will not act as an agent nor shall the Vendor be deemed an employee of the Company or any of its Affiliates or entitled to participate in any employee benefit plan of the Company or receive any benefit available to employees of the Company, including insurance, worker's compensation, and retirement and vacation benefits. Vendor shall not have any authority to, and shall not, make any representation or promise or enter into any agreement on behalf of the Company.

14. Return of Company's Property

14.1. Upon termination of the association, Vendor shall immediately return to the Company any and all books, documents, correspondence, records, and the like referring to the Company's business and affairs and shall not retain any copies of any such records, documents, books, etc.

15. Governing Law and Jurisdiction

15.1. This Agreement shall be governed by and construed in accordance with the Laws of India. The Parties also hereby irrevocably and unconditionally consent to submit to the exclusive jurisdiction of the courts in Greater Noida, Uttar Pradesh for any disputes, actions, suits or proceedings arising out of or relating to this Agreement.

16. Arbitration and Dispute Resolution

- 16.1. Any and all controversies, claims, or disputes arising out of, relating to, or resulting from this Agreement shall be subject to binding arbitration according to Indian Law. Any arbitration will be administered by such dispute shall be resolved pursuant to the Indian Arbitration and Conciliation Act, 1996. The Parties shall mutually appoint a sole arbitrator. The award of the arbitrator shall be final and binding upon the Parties. The place of arbitration shall be in Greater Noida, Uttar Pradesh. Each Party shall bear its own costs and expenses, including attorney's fees, incurred in connection with any arbitration.

17. Miscellaneous:

- 17.1. This Agreement and the agreements referred to herein are the only and entire agreements between the parties and supersede all prior agreements and representations. This Agreement may be amended or modified only by a written document signed by all Parties. If any provision of this Agreement shall be found by a court to be void, invalid or unenforceable, the same shall be reformed to comply with applicable Law or stricken if not so conformable, so as not to affect the validity or enforceability of the remainder of this Agreement. This Agreement may be executed in counterparts, each of which shall be deemed an original, but both of which together shall constitute one and the same instrument.